

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Manukyan	Team: Squad #06	CCRB Case #: 201604243	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/15/2016 9:42 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/15/2017	Precinct: 44
Date/Time CV Reported Tue, 05/17/2016 11:19 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 05/17/2016 11:19 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			044 PCT
2. POF Sherry Paredeshodge	06474	954214	044 PCT
3. An officer			044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in the Bronx.	A . Exonerated
B . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	B . Officer(s) Unidentified
C . POF Sherry Paredeshodge	Discourtesy: Police Officer Sherry Paredeshodge spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint at the CCRB on May 17, 2016 (BR 01).

On May 15, 2016, at approximately 9:42 a.m., officers from the 44th Precinct entered § 87(2)(b)'s apartment, located at § 87(2)(b) in the Bronx (**Allegation A**). The officers were responding to a 911 call made by § 87(2)(b)'s roommate, § 87(2)(b) who alleged that § 87(2)(b) was suicidal. An unidentified officer proceeded to call § 87(2)(b)'s sister, § 87(2)(b) over the phone in order to inform her of what was transpiring, during which time he called § 87(2)(b) "loca" (crazy) (**Allegation B**). § 87(2)(b) was handcuffed and placed inside of an ambulance, where PO Sherry Paredes-Hodge, who responded to the incident location as part of a back-up unit, also called § 87(2)(b) "loca" (**Allegation C**).

No one was summonsed or arrested as a result of this incident.

The investigation was unable to obtain any video footage of the incident.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) § 87(2)(b) [REDACTED]
- A Notice of Claim request is pending as of August 15, 2016 (BR 02). It will be attached to the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR 03).
- This is the first CCRB complaint filed against PO Paredes-Hodge (BR 04).

Findings and Recommendations

Explanation of Subject Officer Identification

According to the EVENT (see NYPD documents), the unit PO Paredes-Hodge was assigned to at the time of the incident, Response Auto #2, responded to the § 87(2)(b)'s apartment. PO Paredes-Hodge confirmed her presence at the incident scene during her in-person statement. § 87(2)(b) described the female officer that called her "loca" as a short Dominican Spanish-speaker with a medium to dark skin tone and dark hair. § 87(2)(g) PO Paredes-Hodge, who was also the only Black female on scene. There were no Hispanic female officers present either.

§ 87(2)(g) [REDACTED]. As the sole witness of this incident, § 87(2)(b) did not cooperate with the investigation. § 87(2)(b) was called on June 6, 2016, but did not answer and a voicemail message was left requesting a call back. § 87(2)(b) was called on June 22, 2016, during which time an unidentified individual answered the phone, stated that he was a friend of § 87(2)(b) and that § 87(2)(b) was not available. This individual took down the CCRB's contact information and stated that he would pass it on to § 87(2)(b) § 87(2)(b) was again called on June 27, 2016, during

which time an unidentified individual answered and stated that he was not § 87(2)(b) and that he had no information regarding a CCRB complaint.

§ 87(2)(b) was unable to provide detailed pedigree information for the subject officer of this allegation, and due to the fact that § 87(2)(b) spoke to this officer over the telephone, was unable to do so either. The only descriptive information that § 87(2)(b) did provide was that this officer was a male and stated that his name was “Police Officer Rigo”.

The EVENT prepared for the incident (see NYPD documents), showed that seven separate units responded to the incident location, meaning that at a total of approximately sixteen officers were present at some point or another. According to the roll call (see NYPD documents), there were approximately twelve male officers present.

A CTS search revealed that there are no NYPD officers with the first or last name of “Rigo”. There were two officers with first name “Rigoberto” – one in PSA 3 and one in the 41st Precinct Detective Squad.

Allegation A – Abuse of Authority: Officers entered § 87(2)(b) in the Bronx.

It is undisputed that PO Paredes-Hodge and other officers entered § 87(2)(b) in the Bronx, pursuant to a 911 call detailing an emergency taking place inside of the apartment.

§ 87(2)(b) stated that on May 15, 2016 (BR 01), while walking to her bathroom inside of § 87(2)(b) she heard her roommate, § 87(2)(b) speaking on the phone. She did not pay much attention to the conversation but heard him making a statement about someone wanting to commit suicide. Upon exiting the bathroom, she saw approximately fifteen officers in her living room. She did not know the manner in which the officers entered the residence, but noted that they were engaged in a conversation with § 87(2)(b) who was stating that § 87(2)(b) was going to throw herself out of the window. As soon as the officers saw § 87(2)(b) she was placed in handcuffs.

During her in-person statement (BR 05), PO Paredes-Hodge confirmed that § 87(2)(b) is emotionally disturbed. On the incident date, she was asked to respond to § 87(2)(b) as back-up to a 911 call, made by someone inside of the residence, stating that § 87(2)(b) wanted to jump out of the building.

According to the 911 communication cd (see NYPD documents), § 87(2)(b) called 911 and asked the operator to send an ambulance to § 87(2)(b), for an individual in a separate room who is threatening to “hurt the kids” and screaming that she is going to kill herself. Upon being asked if he is the patient, § 87(2)(b) responded that he is not but that he lives in the apartment. § 87(2)(b) proceeded to describe the EDP as a female in her forties in possession of a weapon.

(BR 06) The Court of Appeals has outlined three elements to determine whether exigent circumstances exist to justify entry without a warrant: (1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. (2) The search must not be primarily motivated by intent to arrest and seize evidence. (3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Mitchell (1976).

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B - Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation C - Discourtesy: Police Officer Sherry Paredes-Hodge spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) stated (BR 01) that after she was placed in handcuffs, the officers present requested § 87(2)(b)'s phone number, which she provided. § 87(2)(b) would later tell § 87(2)(b) that she was called by a male officer named Rigo. This officer called § 87(2)(b) "loca" during their conversation. § 87(2)(b) was escorted into an ambulance, where she continued to speak to the officers. PO Paredes-Hodges, who went to the ambulance in order to ask § 87(2)(b) questions about her name and pedigree also called her "loca". However, § 87(2)(b) made later made a conflicting statement, saying that PO Paredes-Hodges went directly to her patrol car after taking the pedigree information.

During her phone statement (BR 07), § 87(2)(b) stated that she was contacted by an officer who identified himself as "Police Officer Rigo". This officer told § 87(2)(b) that her sister § 87(2)(b) was "completely crazy" and that she wanted to throw herself out of the window with the kids. This officer also questioned § 87(2)(b) as to how she could leave the kids with § 87(2)(b).

PO Paredes-Hodge (BR 05) stated that the scene of the incident was very chaotic. § 87(2)(b) was flailing her arms, saying she was not going with the officers and screaming. EMS determined that they would take § 87(2)(b) for treatment. § 87(2)(b) repeatedly attempted to fight the officers, who had to restrain her and place handcuffs on her. § 87(2)(b) was taken into an ambulance with PO Paredes-Hodge. While inside of the ambulance, PO Paredes-Hodge solely spoke with the EMTs and did not interact with § 87(2)(b). PO Paredes-Hodge speaks very little Spanish and is not certified to do so. At no point did she refer to § 87(2)(b) as "crazy" or "loca", as she stated that she never spoke with § 87(2)(b) in any capacity. PO Paredes-Hodge did not witness any other officers making statements directed toward her, other than those telling her to "relax". PO Paredes-Hodge was not aware of any officers speaking with a family member over the phone. She did not know any officer by the name of Rigo.

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]. As such, it is recommended that **Allegation B** be closed as **officer unidentified**.

§ 87(2)(g)
[REDACTED]
[REDACTED] As such, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Squad: 6

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date